

State of Vermont
Board of Allied Mental Health Practitioners

In re: Holly Ann Wakefield
License Number: 068.0000511
Docket Number: 2016-238

Order to Remove Conditions

On 2/20/2020, the Vermont Board of Allied Mental Health Practitioners considered Holly Ann Wakefield's request for Removal of Conditions imposed on her license pursuant to a Stipulation and Consent Order effective November 17, 2016, and Supplemental Order effective June 28, 2018 under Docket Number 2016-238. The conditions included but were not limited to successfully completion of coursework, payment of an administrative penalty, and practice under supervision for a minimum of three years. Ms. Wakefield has met all the conditions. After review of the compliance file, the State does not object to removal of all conditions.

Order:

The Board hereby removes all conditions from Holly Ann Wakefield's license to practice as a Licensed Clinical Mental Health Counselor.

Vermont Board of Allied Mental Health Practitioners



Tammy L. Austin, LMFT, Chair

Date: 2/20/20

Date of Entry: 2 / 20 / 2020





**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
HOLLY ANN WAKEFIELD) Docket No. 2016-238
License No. 068.0000511)

STIPULATION AND CONSENT ORDER

NOW COME the State of Vermont, by and through State Prosecuting Attorney Maguire Curran, and the Respondent, Holly Ann Wakefield, who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. § 129(a); 3 V.S.A. § 129a; 3 V.S.A. § 814(d); 26 V.S.A. Chapter 65; the Administrative Rules for the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation.

Stipulated Facts

2. Holly Ann Wakefield ("Respondent") of St. Albans, Vermont, is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor ("LCMHC") under license number 068.0000511. This license was originally issued on November 1, 2000, and expires on January 31, 2019.
3. On November 17, 2016, the Board entered a Stipulation and Consent Order ("2016 Order"). See Attachment A.
4. The 2016 Order reprimanded Respondent's license, imposed a monetary civil penalty, and conditioned Respondent's license for three (3) years from the date of entry. Under those conditions, Respondent is required to meet monthly with a Supervisor, and that Supervisor is required to provide a written report of the Supervisor's findings each month. See Attachment A, page 5, 5(b).
5. The 2016 Order further states, if Respondent has successfully complied with the first year of supervision, Respondent may petition the Board to reduce the Supervisory monthly meetings and repots to be done on a quarterly basis. See Attachment A, page 5, 5(c).

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6. Respondent has successfully complied with her first year of supervision and continues to submit satisfactory monthly supervision reports.
7. Respondent now seeks a reduction in the frequency of her supervision meetings from every month to every other month.
8. On May 8, 2018, Respondent's Supervisor submitted a letter in support of Respondent's request.

Understandings

9. Respondent acknowledges that the facts above are true and that the conditions set out in the Consent Order below are appropriate and necessary to protect the public.
10. Respondent understands that the Vermont Board of Allied Mental Health Practitioners must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
11. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
12. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
13. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this Stipulation and Consent Order.
14. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
15. Respondent voluntarily waives Respondent's right to a contested hearing before the Vermont Board of Allied Mental Health Practitioners and waives any right to appeal from this Stipulation and Consent Order.
16. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

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- A. The Vermont Board of Allied Mental Health Practitioners hereby **MODIFIES** the **Stipulation and Consent Order, Order under Docket No. 2016-238**, entered **November 17, 2016**, (Attachment A) as follows:
1. Paragraph 5(b) of the Order, page 5, shall read: **For the effective period of this Order, Respondent and Supervisor must meet every other month to discuss and review a sampling of Respondent's client files.** Supervisor must provide a written report on the Supervisor's findings every other month.
 2. Paragraph 5(c) of the Order, page 5, shall be stricken.
- B. All other provisions of the Order under Docket No. 2016-238 entered November 17, 2016, remain in full force and effect.
- C. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal, and license reinstatement.
- D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).
- E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

Dated: 6/13/18

STATE OF VERMONT
SECRETARY OF STATE

By: [Signature]
Maguire Curran
State Prosecuting Attorney

HOLLY ANN WAKEFIELD
RESPONDENT

Dated: 6/6/18

By: [Signature]
Holly Ann Wakefield

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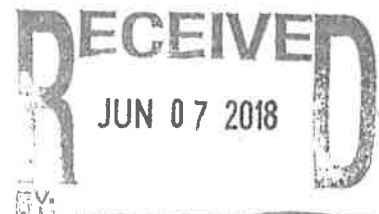
APPROVED AND SO ORDERED:

Dated: 6/21/18

VERMONT BOARD OF ALLIED
MENTAL HEALTH PRACTITIONERS

By: [Signature]
Chairperson

Date of Entry: 6-28-18



RECEIVED

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STATE OF VERMONT
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OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS

IN RE:
HOLLY ANN WAKEFIELD
License No. 068.0000511

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Docket No. 2016-238

STIPULATION AND CONSENT ORDER

NOW COME, the State of Vermont, by and through State Prosecuting Attorney Rachel Allen, and the Respondent, Holly Ann Wakefield, represented by Susan Manley, Esq., who stipulate and agree as follows:

Board Authority

1. The Vermont Board of Allied Mental Health Practitioners ("Board") has jurisdiction to investigate and adjudicate allegations of unprofessional conduct committed by non-licensed and non-certified psychotherapists pursuant to 3 V.S.A. §§ 129, 129a; 26 V.S.A. Chapter 65; and the Administrative Rules for the Board of Allied Mental Health Practitioners, and the Rules of the Vermont Office of Professional Regulation.

Stipulated Facts

2. Holly Ann Wakefield ("Respondent") of St. Albans, Vermont, is licensed by the State of Vermont as a Licensed Clinical Mental Health Counselor under license number 068.0000511. This license was originally issued on or about November 1, 2000, and is currently set to expire on or about January 31, 2017.
3. At all times relevant, Respondent was self-employed as a Licensed Clinical Mental Health Counselor at her private practice located in St. Albans, Vermont.
4. In the early spring of 2014, Client 1 began seeing Respondent for counseling for issues such as stress, anxiety, and relationship issues.
5. On or about February 28, 2014, Client 1 signed Respondent's Consent to Treat paperwork and Respondent created an Initial Assessment and Treatment Plan for Client 1.
6. Respondent provided counseling professional services for Client 1 approximately five months.
7. During their last session, Client 1 asked her on a date and she accepted.

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8. Respondent's relationship with Client 1 changed from therapeutic to romantic.
9. Respondent and Client's romantic relationship ending in January 2015 after approximately three months.
10. In June 2015, Respondent and Client 1 again spent time together that was sexual and romantic in nature.
11. In November 2015, Respondent and Client 1 again spent time together that was sexual and romantic in nature.
12. On September 26, 2016, Respondent completed an independent evaluation for purposes of settlement.
13. Respondent is currently engaged in counseling and intends to continue with treatment.

Violation One: 26 V.S.A. § 3271(a)(6). Entering into an additional relationship with a client, supervisee, research participant, or student that might impair the licensed clinical mental health counselor's objectivity or otherwise interfere with the clinical mental health counselor's professional obligations.

14. The State re-alleges and incorporates Paragraphs 2 through 11 above.
15. As a Licensed Clinical Mental Health Counselor, Respondent is prohibited from entering into an additional relationship with a client that might impair her objectivity or otherwise interfere with a clinical mental health counselor's professional obligations.
16. The facts alleged in paragraphs 2 through 10 demonstrate Respondent's failure to maintain professional boundaries when she engaged in an additional relationship with Client 1.
17. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 26 V.S.A. § 3271(a)(6).

Violation Two: 26 V.S.A. § 3271(a)(4). Engaging in any sexual conduct with a client, or with the immediate family member of a client, with whom the licensee has had a professional relationship within the previous five years).

18. The State re-alleges and incorporates Paragraphs 2 through 11 above.

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19. As a Licensed Clinical Mental Health Counselor, Respondent must not engage in a sexual conduct with a client within five years of the professional relationship.
20. The facts alleged in paragraphs 2 through 11 demonstrate Respondent engaged in sexual conduct with a client with whom she had a professional relationship within the previous five years.
21. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 26 V.S.A. § 3271(a)(4).

Understandings

22. Respondent acknowledges that the facts above are true and that the conditions set out in the Consent Order below are appropriate and necessary to protect the public.
23. Respondent understands that the Allied Mental Health Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire Stipulation and Consent Order shall be null and void.
24. Respondent specifically waives any claims that any disclosures made to the full Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
25. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
26. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this Stipulation and Consent Order.
27. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this Stipulation and Consent Order.
28. Respondent voluntarily waives Respondent's right to a contested hearing before the Board and waives any right to appeal from this Stipulation and Consent Order.
29. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based on the Stipulation above, it is **ORDERED AND ADJUDGED** as follows:

- A. The Board hereby **REPEALS** the Respondent's license.

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B. The Board imposes a **MONETARY CIVIL PENALTY IN THE AMOUNT OF FIVE HUNDRED DOLLARS (\$500)**. This penalty is to be paid within ninety (90) days of the date of entry of this Order.

B. The Board hereby **CONDITIONS** the Respondent's license to practice for **THREE (3) years from the date of entry below**. The conditions are as follows:

1. Re-issuance of License.

Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."

2. Length of Time of Conditions Imposed.

The conditions shall remain in place until Respondent has completed all conditions ordered. Respondent shall be subject to the conditions until Respondent completes a **minimum of three (3) years** of supervised practice in which she works at least forty (40) hours every two (2) weeks as a licensed clinical mental health counselor.

3. Monitoring.

The Office of Professional Regulation, through the Enforcement Case Manager, shall be responsible for monitoring Respondent's compliance with these Conditions. All reports or correspondence regarding compliance with these conditions shall be submitted to the Case Manager in accordance with the Conditions listed below.

4. Required Coursework.

Respondent must successfully complete (i.e., receive a passing grade, if applicable) a pre-approved course on sexual misconduct.

- a. Prior to enrollment, Respondent must submit course information to the Secretary of State's Office of Professional Regulation, Enforcement Case Manager, for approval.

This course must be completed within one hundred (100) days of the date of entry of this Stipulation and Consent Order. Failure to complete such courses within the prescribed timeframe shall constitute a violation of this Stipulation and Consent Order.

5. Practice Under Supervision.

Respondent shall practice under supervision for a minimum of three (3) years.

- a. Supervisor Requirements. Respondent shall practice as a Licensed Clinical Mental Health Counselor under the supervision of a pre-approved Licensed Clinical Mental Health Counselor, in good-standing and licensed by the State of Vermont ("Supervisor"). The supervising relationship shall not create a

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conflict of interest between the Respondent and the Supervisor. **The Supervisor must review a sampling of client files and have an in-person meeting with Respondent to discuss and review the selected files.**

- a. Respondent shall, within thirty (30) days of the date of entry of this order, cause the Supervisor to submit a letter, on letterhead, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.
 - b. Monthly Reviews for the First Year of Supervision. **For the first year of supervision, Respondent and Supervisor must meet monthly to discuss and review a sampling of Respondent's client files.** Supervisor must provide a written report on the Supervisor's findings monthly.
 - c. If the Secretary of State's Office of Professional Regulation Enforcement Case Manager and the Supervisor agree that Respondent has successfully complied with the first year of supervision, Respondent may petition the Board to reduce the Supervisory monthly meetings and reports to be done on a quarterly basis.
6. Interview with the Board or its Designee. Respondent shall appear in person for interviews with the Board or its designee upon request.
 7. Out-of-State Practice. Before any out-of-state practice can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval from the Board. The Board will approve out-of-state mental health practice so long as Respondent can still comply with the provisions of this Consent Order. If Respondent receives discipline on a mental health license held in another state during the conditioned period, Respondent must inform the Board of such, in writing, within ten (10) days of receiving such discipline.
 8. Notification of Place of Employment/Personal Address/Telephone Number. Within ten (10) days of the date of entry of this Consent Order, Respondent shall notify the Board, in writing, of Respondent's current place of employment, personal address, and telephone number. Respondent shall further notify the Board, in writing, within forty-eight (48) hours of any change in employment (including resignation or termination), personal address, or telephone number.
 9. Notification to Other States. In the event that Respondent is licensed in any other state(s), Respondent must inform the allied mental health licensing board of the state(s) in which Respondent is licensed of the conditional status of Respondent's Vermont license within thirty (30) days of the date of entry of this Order.
 10. License Renewal. This Order does not automatically extend the license and Respondent must comply with the requirements for license renewal.

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11. Release of Information Forms. This Order requires Respondent to authorize drug and/or alcohol treatment providers to report information in verbal and/or written format and/or to discuss Respondent and any and all treatment rendered to Respondent for drugs and/or alcohol with the Board or its designee. Any and all of this information may be provided to the Office of Professional Regulation investigators, and that the information may be used for further prosecutions if so warranted or if the Office of Professional Regulation determines that said information violates the terms of this Order or any rules or laws governing the practice of a licensed clinical mental health counselor.

Respondent is entitled to revoke this consent at any time. However, any revocation shall be considered a violation of this Order. This consent expires when the conditions are removed from Respondent's Clinical Mental Health Counselor license.

This Stipulation and Consent Order shall itself constitute a valid written consent pursuant to the requirements of 42 C.F.R. § 2.31. Respondent understands that Respondent's treatment provider may require Respondent's to sign a separate and distinct consent meeting the requirements of 42 C.F.R. § 2.31.

12. Costs. Respondent shall bear all costs of complying with this Consent Order.
13. Violation of this Order. If Respondent violates this Order the Board, after giving Respondent notice and an opportunity to be heard, may rescind or modify this Order and impose additional appropriate disciplinary actions. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.
14. Completion of Conditional License Period.
Respondent shall submit a petition to the Docket Clerk to remove any and all conditions on Respondent's license. The State will assent to or oppose Respondent's petition. The Board will conduct a hearing if necessary. Respondent bears the burden and must present proof that Respondent has fully complied with the terms of this Order and Supervised Practice is no longer necessary to protect the public.

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- B. Notwithstanding any provision above, the Respondent must continue to meet all Board requirements for maintaining a license, license renewal and license reinstatement.
- C. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

D. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

Dated: 11/16/16

STATE OF VERMONT
SECRETARY OF STATE

By: 
Rachel Allen
State Prosecuting Attorney

Dated: 11/10/16

HOLLY ANN WAKEFIELD
RESPONDENT

By: 
Holly Ann Wakefield

APPROVED AS TO FORM:

Dated: 11/14/16

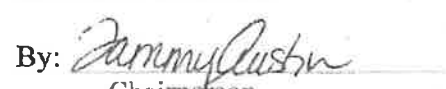
ATTORNEY FOR RESPONDENT

By: 
Susan Manley, Esq.

APPROVED AND SO ORDERED:

Dated: 11/17/16

VERMONT BOARD OF ALLIED
MENTAL HEALTH

By: 
Chairperson

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Date of Entry: 11/17/16